

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Squad #2	CCRB Case #: 201806782	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/03/2018 8:00 AM	Location of Incident: § 87(2)(b)	Precinct: 120	18 Mo. SOL 2/3/2020	EO SOL 2/3/2020	
Date/Time CV Reported Fri, 08/17/2018 12:14 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 08/17/2018 12:14 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DTS Rudy Anzalone	5617	945472	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Thomas Woods	05640	935987	INT CIS
2. POM Adrian Klusek	07981	956024	120 PCT
3. POM Edward Sciarrillo	11932	961637	120 PCT
4. POM James Krebs	06991	952951	120 PCT
5. SGT Joseph Podkalicki	02010	944901	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.DTS Rudy Anzalone	Abuse: Detective Rudy Anzalone entered § 87(2)(b) in Staten Island.	§ 87(2)(b)
B.DTS Rudy Anzalone	Abuse: Detective Rudy Anzalone searched § 87(2)(b), in Staten Island.	§ 87(2)(b)

Case Summary

On August 17, 2018, § 87(2)(b) filed the following complaint in-person at the Civilian Complaint Review Board (CCRB).

At approximately 8:00 a.m. on August 3, 2018, Detective Rudy Anzalone of the 120th Precinct, along with other officers from the 120th Precinct, Criminal Intelligence Section, and the Emergency Services Unit, executed a search warrant (Board Reviews 01 and 02) at § 87(2)(b)'s residence, § 87(2)(b) in Staten Island (**Allegation A – Abuse of Authority: Entry of Premises – § 87(2)(g)** **Allegation B – Abuse of Authority: Search of Premises – § 87(2)(g)** Marijuana was found (Board Review 03) and § 87(2)(b) was issued a summons in regards (Board Review 04).

No video footage was found of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Rudy Anzalone entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Detective Rudy Anzalone searched § 87(2)(b), in Staten Island.

It is undisputed that on August 3, 2018, officers entered and searched § 87(2)(b), in Staten Island, pursuant to search warrant #§ 87(2)(b) issued to Detective Anzalone on § 87(2)(b) § 87(2)(g).

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two prior CCRB complaints and has been named as a victim in six allegations (Board Review 05)
 - § 87(2)(b)
 -
- Detective Anzalone has been a member of service for 10 years and has been a subject in 10 prior CCRB complaints and 24 allegations, of which one was Substantiated.
 - In CCRB case #201702888, a Stop allegation was substantiated. The Board recommended Command Discipline B. The NYPD has not yet imposed discipline.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- A Notice of Claim search inquiry was sent to the New York City Comptroller's Office on September 19, 2018. A response is being awaited and will be attached to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]

Squad No.: 2

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date